

23STCV26736 23STCV26736

County: los-angeles

Division: Civil Law and Motion

Department: 20

Hearing date: 2026-09-18

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Case Number: 23STCV26736 Hearing Date: September 18, 2026 Dept: 20

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: Friday, September 18, 2026

Case Name: Xcellence, Inc., et al. v. Triller Platform Co., et al.

Case No.: 23STCV26736

Motion: Motion to Strike Answer

Moving Party: Plaintiff Xcellence, Inc. dba Xact Data Discovery

Responding Party: Unopposed

Notice: OK

Ruling: The motion to strike the answer of Triller Platform Co. fka Triller, Inc. is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

Plaintiff Xcellence, Inc. dba Xact Data Discovery alleges a series of written agreements with Defendant Triller Platform Co. fka Triller, Inc. between July 30, 2021 and September 10, 2021. Plaintiff alleges a balance due of \$400,391.66.

On November 1, 2023, Plaintiff filed a complaint for Breach of Contract. On January 2, 2024, Defendant answered the complaint.

DISCUSSION

APPLICABLE LAW

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437, subd. (a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An "irrelevant" matter includes any "demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Id. § 431.10, subds. (b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

APPLICATION TO FACTS

On September 16, 2025, the court granted counsel for Defendant's motion to be relieved as counsel of record. The court record shows no substitution of counsel for Defendant. A corporate entity cannot appear in the action without representation from an admitted attorney. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 731.) The answer on behalf of the corporate entity is now rendered invalid.

The motion to strike the answer of Defendant is granted.

Plaintiff may submit a default with the clerk.

The court vacates the September 21, 2026, trial date.

CONCLUSION

Plaintiff Xcellence, Inc. dba Xact Data Discovery's motion to strike the answer of defendant Triller Platform Co. fka Triller, Inc. is GRANTED.

Xcellence, Inc. dba Xact Data Discovery to give notice.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.